

Issues 1 through 5 each depend on the same underlying theory: that Plaintiffs affirmatively satisfied all three conditions of the fourth sentence of Section 12.1, rendering the assignment effective without KAPA's separate consent. For the reasons stated above, Plaintiffs have not established the substitute-guarantor condition as a matter of law. DENIED

Issue 6 is independently defective. A "claim for damages" is a proper subject of summary adjudication under section 437c(f)(1) only where it is a claim for punitive damages as specified in Civil Code section 3294; the statute does not authorize summary adjudication of a generic contention that no compensatory damages can be proved. (C.C.P., § 437c(f)(1).) No section 437c(t) stipulation has been submitted. DENIED.

2.

CASE #	CASE NAME	HEARING NAME
CVPS2408394	DESERT HEALTHCARE DISTRICT VS ALL PERSONS INTERESTED IN THE MATTER HEREIN DESCRIBED LEASE PURCHASE TRANSACTION AND RELATED CONTRACTS AND OBLIGATIONS OF DESERT HEALTHCARE DISTRICT WITH RESPECT TO DESERT REGIONAL MEDICAL CENTER, INC.	EISENHOWER'S MOTION TO COMPEL THE CERTIFIED AND COMPLETE ADMINISTRATIVE RECORD AND SUPPLEMENTS AND AUGMENT THE RECORD

Tentative Ruling: Granted in part.

Counsel are ordered to appear on Monday, August 3, 2026 at 8:30 a.m. in Department PS2 to discuss scope of ruling.

Plaintiff Desert Healthcare District filed a Complaint for Validation on December 31, 2024 against all persons interested in the matter of a certain lease to purchase transaction and related contracts and obligations of Desert Healthcare District with respect to Desert Regional Medical Center. The Complaint seeks to validate the action taken by Plaintiff regarding the lease purchase agreement (LPA) and the actions of District's Board in approving a fairness opinion from an independent consultant and approving the LPA and ordering that a measure relating to approval of the LPA be placed on the ballot (Measure AA), which was approved by the voters by a margin of 72.34% .

The matter is currently set for a long cause court trial on September 4, 2026.

Eisenhower moves the court to compel Plaintiffs to provide a certified and complete copy of the administrative record. In addition, Eisenhower seeks to supplement and augment the administrative record. Eisenhower asserts that District was required to prepare the administrative record, but did not. Eisenhower also asserts that the record is demonstrably incomplete has its communications with the District regarding the LPA are missing from the record. In addition, Eisenhower asserts that statutorily required documents that are referenced in the record are missing from the record. Also missing are publicly available District board meeting materials as well non-public documents that District provably had before it and relied on when making its decision are missing from the record. Further, Eisenhower asserts that District is required to, but did not certify the record. Lastly, Eisenhower asserts that the court should augment the record with key extra-record evidence.

In opposition, Plaintiffs District and DRMC assert that the record is complete and contains the documents that were before the District and has been certified as accurate and complete. Further, District and DRMC assert that although not required, they amended the record with the documents Eisenhower specifically identified and the other documents described by Eisenhower are irrelevant, already in the record, or do not exist. Plaintiffs assert that the documents from 2017-2018 relating to amendments to the 1997 lease are not relevant to this action. In addition, District asserts that documents post decision are not relevant. As to communications received from City of Rancho Mirage, District asserts that the only communication received post-dates the decision. As to data and information provided to consultants, District and DRMC assert that consultants were used to provide usable information to the Board and did not rely on the raw data. As to the Consulting Contract Plaintiffs assert that it is not relevant and Eisenhower has not shown otherwise. As to certain Email communications regarding the 1997, District asserts not relevant. Lastly, Plaintiffs assert that *Outfitter Props.* Does not support the court disregarding the administrative record or going beyond it.

In reply, Eisenhower asserts its motion was and remains necessary and should be granted. Eisenhower asserts that the proffered Amended Record still has not been properly certified or prepared and remains incomplete and missing known categories of documents. First, Plaintiffs admit that it was compiled based on “counsel’s mental impressions and legal theories” as to what is “necessary” to the case, and where counsel decided what was “included [and] excluded.” *Id.* The District must provide a complete unfiltered record of everything that was before the District in evaluating the decision to enter the LPA, not solely those items that its counsel (or a third party’s counsel) deem helpful to Plaintiffs’ case. Plaintiffs’ proffered record falls short of that standard. Second, the District’s certification indicates that it only included those documents that it (or counsel for Tenet) unilaterally deemed to be “at issue.” This undefined and amorphous subjective limitation materially limits the contents of the record, potentially excluding documents that were before the District as it made its decision, but which were not included because counsel somehow deemed them not to be “at issue” based upon an unknown definition. The District must include all documents, harmful or helpful, that were before the District. Third, the District confirms that it did not search its records for all written evidence that may have been before the District in deciding the LPA and, instead, limited its search to documents “publicly-available” on the District’s website and “records for all formal letters sent to or received from the parties identified in Eisenhower’s motion.”

Administrative Record

An Administrative Record must comply with CCP section 1094.6(c), which provides “[t]he complete record of the proceedings shall be prepared by the local agency or its commission, board, officer, or agent which made the decision and shall be delivered to the petitioner within 190 days after he has filed a written request therefor. Such record shall include the transcript of the proceedings, all pleadings, all notices and orders, any proposed decision by a hearing officer, the final decision, all admitted exhibits, all rejected exhibits in the possession of the local agency or its commission, board, officer, or agent, all written evidence, and any other papers in the case.”

Here, the court’s docket reflects that an administrative record was filed along with Plaintiff’s opposition to this motion, on July 7, 2026.

The court orders the appearance of the parties to determine whether or not the administrative record includes all materials used (whether by the Board or consultants) in making its determination to approve the agreement, not what District believes is relevant. Specifically, data and information provided to consultants, District and DRMC assert that consultants were used to provide usable information to the Board yet they did not rely on the raw data. However, no valid

argument is made as to why this information should be excluded from the administrative record as it was the information provided by District to the consultants to prepare the reports that were relied on. Likewise, the Consulting Contract is a document that only Plaintiffs have access and without a review it is unknown whether an unsigned, draft resolution to approve a contract with California Consulting, Inc. included in the Board's March 28, 2023 materials is relevant.

As to Eisenhower's request for the court to supplement or augment the record with extra-record evidence to provide background information or establish that District did not fulfill its duties in making the decision to enter the agreement or assist the court in understanding the agency's decision, the court does not need "background information" or other evidence to "understand the agency's decision", such should be limited to the administrative record (once complete and certified). Only evidence that would go to the lawfulness of the decision is admissible. That determination should be made by the court on a document by document basis. Further, such evidence would be limited to the Board's actions in entering into the agreement, not the prior 1997 lease or post-agreement actions.